

In pursuit of that principle, executive power was vested in the President; no other offices in the Executive Branch, other than the Presidency and Vice Presidency, were mandated by the Constitution. Only two Executive Branch offices, therefore, are creatures of the Constitution; all other departments and agencies, from the State Department to the General Services Administration, are creatures of the Congress and owe their very existence to the Legislative Branch.³

The Presidency, in contrast, stands on a very different footing. Unlike the vast array of departments which the President oversees, the Presidency is in no sense a creature of the Legislature. The President's powers originate not from statute, but from the constitutional command to "take Care that the Laws be faithfully executed" These independent, constitutional origins of the Presidency have an important bearing on determining the appropriate extent of congressional power over the Chief Executive or his records and workpapers. For, although the branches of Government are obviously not divided into "watertight compartments," *Springer v. Philippine Islands*, 277 U. S. 189, 211 (1928) (Holmes, J., dissenting), the office of the Presidency, as a constitutional equal of Congress, must as a general proposition be free from Congress' *coercive* powers.⁴ This is not simply an abstract proposition

³ Statutes relating to departments or agencies created by Congress frequently are phrased in mandatory terms. For example, in the 1949 legislation creating the General Services Administration, Congress provided as follows:

"The Administrator is authorized *and directed* to coordinate and provide for the . . . efficient purchase, lease and maintenance of . . . equipment by Federal agencies." 40 U. S. C. § 759 (a).

Even with respect to international relations, Congress has affirmatively imposed certain *requirements* on the Secretary of State:

"The Secretary of State *shall furnish* to the Public Printer a correct copy of every treaty between the United States and any foreign government" 22 U. S. C. § 2660.

⁴ Cf. MR. JUSTICE WHITE's discussion in *United States v. Brewster*, 408 U. S. 501, 558 (1972) (dissenting opinion), where he spoke of the